Reasonable Classification, Equality Before Law, and Equal Protection of Laws

# Constitutional Law - I

## Article 14: The Right to Equality

July 27, 2026

# Contents

**Introduction to Article 14** **4**

**1 Foundational Concepts** **4**
1.1 Scope of "Person" . . . . . 4
1.2 The Dual Mandate . . . . . 4

**Reasonable Classification: The Doctrine of Classification** **5**

**2 Introduction to Classification** **5**
2.1 Why Classification is Necessary . . . . . 5
2.2 The Two-Pronged Test for Reasonable Classification . . . . . 5

**3 Cases on Reasonable Classification** **5**
3.1 E.P. Royappa v. State of Tamil Nadu (1974) . . . . . 5
3.2 State of West Bengal v. Anwar Ali Sarkar (1952) . . . . . 6
3.3 Kathi Raning Rawat v. State of Saurashtra (1952) . . . . . 6
3.4 Comparison of Anwar Ali Sarkar and Kathi Raning . . . . . 7
3.5 Federation of Armed Forces v. Union of India . . . . . 7

**4 Homework Assignment** **7**

**Equality Before Law and Equal Protection of Laws** **8**

**5 Understanding the Two Concepts** **8**
5.1 Equality Before Law (Negative Concept) . . . . . 8
5.1.1 Historical Context . . . . . 8
5.2 Equal Protection of Laws (Positive Concept) . . . . . 8
5.2.1 Illustration: The Basketball Example . . . . . 9
5.2.2 Illustration: The IAS Exam Example . . . . . 9

**6 Summary of the Two Concepts** **9**

# Introduction to Article 14

## 1 Foundational Concepts

Article 14 of the Constitution of India guarantees the right to equality to all persons. It provides:

**Article 14**

*"The State shall not deny to any person equality before the law or the equal protection of the laws within the territory of India."*

### 1.1 Scope of "Person"

The term "person" under Article 14 includes all human beings, irrespective of nationality, citizenship, or status. This encompasses:

- Citizens of India
- Aliens (including citizens of Pakistan, Bangladesh, Sri Lanka, etc.)
- Companies and legal persons (to the extent applicable)

The inclusive nature of the term ensures that the protection against discrimination extends to every individual within Indian territory.

### 1.2 The Dual Mandate

Article 14 contains two distinct but complementary concepts:

1. **Equality Before Law**: A negative concept that prohibits special privileges and disabilities.
2. **Equal Protection of Laws**: A positive concept that requires the State to treat equals equally and unequals unequally, thereby justifying affirmative action and reasonable classification.

# Reasonable Classification: The Doctrine of Classification

## 2 Introduction to Classification

Since Article 14 applies to all persons, it does not mean that all persons must be governed by identical laws. The State is permitted to classify persons into different groups for the purpose of legislation, provided such classification satisfies certain constitutional standards.

### 2.1 Why Classification is Necessary

Equality among unequals is itself a violation of the right to equality. Therefore, the law must recognise the inherent differences between persons and groups. Classification is the mechanism by which the law identifies these differences and creates distinct categories.

### 2.2 The Two-Pronged Test for Reasonable Classification

For a classification to withstand constitutional scrutiny, it must satisfy the following two conditions:

1. **Intelligible Differentia**: The classification must be founded on an intelligible differentia that distinguishes persons or things that are grouped together from those left out of the group. The differentia must be real and substantial, not merely illusory.

2. **Nexus with the Objective**: The intelligible differentia must have a rational nexus with the object sought to be achieved by the law, policy, or decision in question.

Illustration: Selection for a Basketball Team

Suppose the objective is to select a basketball team. A classification based on height (e.g., selecting persons above 5 feet 8 inches) would likely satisfy the intelligible differentia test. The nexus with the objective of selecting competent players would also be established. However, if it is proven that shorter players are equally or more capable, the classification would fail the nexus test.

## 3 Cases on Reasonable Classification

The lecture discussed several landmark cases to illustrate the application of the reasonable classification doctrine.

### 3.1 E.P. Royappa v. State of Tamil Nadu (1974)

This case is significant for establishing the "New Doctrine of Equality," which read arbitrariness as a facet of Article 14.

Case Summary

**Facts**: E.P. Royappa, a senior IAS officer, was superseded in his appointment as Chief Secretary to the Government of Tamil Nadu. He challenged the decision on grounds of arbitrariness and violation of Article 14. **Held**: The Supreme Court held that Article 14 strikes at arbitrariness because a decision that is arbitrary is inherently unequal. This was a significant expansion of the equality doctrine beyond the traditional "classification" test.

## 3.2 State of West Bengal v. Anwar Ali Sarkar (1952)

This case is a classic illustration of a law failing the reasonable classification test.

Case Summary

**Facts**: The West Bengal Special Courts Act, 1950, provided for the trial of certain offences by special courts. The Act did not specify the categories of offences that would be tried by such courts, leaving it to the discretion of the State Government. **Held**: The Supreme Court struck down the Act on the ground that the classification was arbitrary and did not rest on an intelligible differentia. The wide discretion given to the Executive was found to be discriminatory.

## 3.3 Kathi Raning Rawat v. State of Saurashtra (1952)

This case demonstrates a classification that was upheld.

Case Summary

**Facts**: The Saurashtra State Ordinance provided for the trial of certain offences by special courts. Unlike the West Bengal Act, the Preamble to the Ordinance specified the types of offences that were to be tried by the Special Courts. **Held**: The Supreme Court upheld the Ordinance, noting that the Preamble provided sufficient guidance to the Executive Magistrates regarding the category of cases to be sent to the Special Courts. Thus, the intelligible differentia and nexus tests were satisfied.

| Anwar Ali Sarkar (Struck Down) | Kathi Raning (Upheld) |
|---|---|
| Act did not specify the categories of offences. | Ordinance specified the categories in its Preamble. |
| Uncontrolled discretion given to the State Government. | Clear guidance to Executive Magistrates. |
| Failed the intelligible differentia test. | Passed the intelligible differentia test. |

Table 1: Differences Between the Two Cases

### 3.4 Comparison of Anwar Ali Sarkar and Kathi Raning

### 3.5 Federation of Armed Forces v. Union of India

Case Summary

**Facts**: The government introduced a policy requiring retired armed forces personnel to make a one-time payment to avail lifetime medical facilities, while active personnel received free medical treatment. **Issue**: Whether the classification between active and retired personnel was reasonable. **Observation**: The court noted that while classification is permissible, a cut-off date that discriminates between similarly situated groups without a reasonable nexus to the objective may be unconstitutional.

## 4 Homework Assignment

To deepen understanding, students were assigned the following task:

Homework

1. Create 10 valid classes (classifications) that satisfy the intelligible differentia and nexus tests.
2. Create 5 invalid classes that fail these tests.
3. Where possible, find case law to support the classification.
4. Ensure the classes are diverse and not repetitive (e.g., avoid creating multiple variations of "committees").

# Equality Before Law and Equal Protection of Laws

## 5 Understanding the Two Concepts

As noted earlier, Article 14 contains two distinct concepts. The lecture provided a detailed historical and practical exposition of these concepts.

### 5.1 Equality Before Law (Negative Concept)

This is a negative concept that prohibits special privileges and disabilities. It embodies the rule of law, meaning:

- No person is above the law.
- Every person, irrespective of status, is subject to the ordinary law of the land.
- No special privileges or disabilities exist.

#### 5.1.1 Historical Context

The lecture highlighted historical instances of disabilities and privileges:

- **Mahatma Gandhi in South Africa**: Thrown out of a first-class train compartment in Pietermaritzburg despite holding a valid ticket, solely on the basis of race. This incident marked a turning point in his life.
- **Travancore Breast Tax**: Lower-caste women were prohibited from wearing upper garments unless they paid a "breast tax." This led to the tragic incident of Nangeli, who cut off her breasts in protest.
- **Untouchability and "No Peon, No Water"**: Dalits were denied access to public water sources. Dr. B.R. Ambedkar's experience of not being allowed to drink water without a peon's assistance is a stark example of the disabilities imposed by the caste system.
- **Karna's Exclusion**: In the Mahabharata, Karna was denied the right to participate in Draupadi's *swayamvar* because he was a *Suta-putra* (not of royal lineage).

Key Insight

"Equality Before Law" abolishes these historical disabilities and privileges, creating a level playing field for all.

### 5.2 Equal Protection of Laws (Positive Concept)

This is a positive concept that requires the State to treat equals equally and unequals unequally. It justifies:

- Affirmative action for disadvantaged groups.

- Age relaxations for reserved categories.
- Special provisions for women, children, and other vulnerable groups.

### 5.2.1 Illustration: The Basketball Example

**The Basketball Example**

Consider two players: one is 6.5 feet tall and the other is 3 feet tall. If the basketball hoop is kept at a uniform height of 12 feet, the taller player has an inherent advantage. This is "Equality Before Law"—everyone is subject to the same rule. However, to achieve true equality ("Equal Protection"), the height of the hoop might be adjusted or other concessions made to ensure a fair contest.

### 5.2.2 Illustration: The IAS Exam Example

**The IAS Exam Example**

Consider two individuals:

- **Person A**: Born into an affluent family, received the best nutrition, education, and coaching from an early age.
- **Person B**: Born into a rural, impoverished family, with limited access to nutrition, education, and coaching.

Applying the same age limit and exam criteria to both would be "Equality Before Law" but may not achieve true equality. "Equal Protection of Laws" would justify extending age relaxations and other benefits to Person B to compensate for systemic disadvantages.

# 6 Summary of the Two Concepts

| **Equality Before Law** | **Equal Protection of Laws** |
|---|---|
| Negative concept. | Positive concept. |
| Abolishes privileges and disabilities. | Requires the State to treat unequals unequally. |
| Originates from the British legal tradition. | Originates from the American legal tradition. |
| Prohibits discrimination. | Permits reasonable classification. |

Table 2: Comparison of the Two Facets of Article 14

# Assignments and Further Reading

**Homework Assignments**

1. Read the following cases and prepare brief notes:
   - *E.P. Royappa v. State of Tamil Nadu* (1974) 4 SCC 3.
   - *State of West Bengal v. Anwar Ali Sarkar* AIR 1952 SC 75.
   - *Kathi Raning Rawat v. State of Saurashtra* AIR 1952 SC 123.
   - *Federation of Armed Forces v. Union of India* (Special Reference).
2. Create 10 valid and 5 invalid classes as assigned in class.
3. Read about the historical incidents of discrimination (Travancore Breast Tax, No Peon No Water, etc.) to understand the context of Article 14.

**Key Principles**

1. Article 14 guarantees both equality before law and equal protection of laws.
2. Reasonable classification is permissible, provided it satisfies the intelligible differentia and nexus tests.
3. Equality before law prohibits special privileges and disabilities.
4. Equal protection of laws requires the State to treat unequals unequally.
5. Arbitrariness is a facet of Article 14, as established in *E.P. Royappa*.